



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

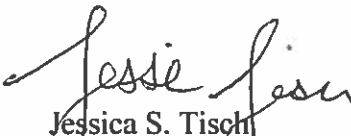
Re: Disciplinary Case No. 2022-26881 / PODS Case No. C-031880 regarding
Sergeant Odani Acevedo

Date: October 29, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Sergeant Acevedo stopped, frisked, and search an individual. It was also alleged that he abused his authority, was discourteous, failed to explain the reason for law enforcement activity, and failed to provide a business card to an individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, Sergeant Acevedo will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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Dr. MOHAMMAD KHALID
INTERIM CHAIR

April 2, 2025

The Honorable Jessica Trisch
Police Commissioner
New York City Police Department One Police Plaza
New York, NY 10038
VIA EMAIL

Re: *CCRB v. SGT. Odani Acevedo (CCRB Case no. 202102172, DADs no. 2022-26881, Tax no. 954459)*

Commissioner Tisch:

A negotiated settlement of dismissal of the charge along with Department Imposed Training was agreed upon and signed by all the parties on January 15, 2025. Assistant Deputy Commissioner-Trials, Anne Stone endorsed the negotiated settlement on January 29, 2025. This is a downward deviation from the NYPD's Disciplinary Matrix. CCRB offered this disposition for the following reasons:

1. Sgt. Acevedo agreed to take responsibility for his misconduct.
2. Sgt. Acevedo received recognition for Excellent Police Duty three times.
3. Sgt. Acevedo has been a member of service for eleven years with no disciplinary record and is rated above standards by his commanding officer
4. The duration of these actions, which lasted no more than several minutes, is also a factor CCRB considered in recommending NYPD training.

Respectfully submitted,

Andre D. Applewhite
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Chief Prosecutor
NYC Civilian Complaint Review Board